

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jonathan Hutchinson	Team: Team # 1	CCRB Case #: 201201834	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 02/09/2012 1:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/9/2013	Precinct: 52		
Date/Time CV Reported Thu, 02/09/2012 4:57 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/09/2012 4:57 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Rolando Carbonell	06831	928017	NARCB BX
2. SGT Sean Lynch	04339	917115	NARCB BX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Thomas Mchale	04937	919391	NARCB BX
2. DT3 Mark Oconnell	05367	900544	NARCB BX

Officer(s)	Allegation	Investigator Recommendation
A . SGT Sean Lynch	Abuse: Sgt. Sean Lynch authorized the entry of § 87(2)(b) in the Bronx.	A . Unsubstantiated
B . DT3 Rolando Carbonell	Abuse: Det. Rolando Carbonell frisked § 87(2)(b)	B . Unsubstantiated
C . SGT Sean Lynch	Abuse: Sgt. Sean Lynch authorized the search of § 87(2)(b) in the Bronx.	C . Exonerated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On February 9, 2012, § 87(2)(b) a resident of § 87(2)(b) § 87(2)(b) in the Bronx, called the CCRB to file the following complaint on behalf of her boyfriend, § 87(2)(b) of the same address. § 87(2)(b) was not a witness to the incident discussed below.

On February 9, 2012, at approximately 1:00 p.m., officers from Narcotics Borough Bronx entered and searched § 87(2)(b) § 87(2)(b) in the Bronx in § 87(2)(b) presence, resulting in the following allegations.

- **Allegation A: Abuse of Authority – Sgt. Sean Lynch authorized the entry of § 87(2)(b) in the Bronx.**
- **Allegation B: Abuse of Authority – Det. Rolando Carbonell frisked § 87(2)(b)**
§ 87(2)(g) it is therefore recommended that **Allegations A and B be unsubstantiated.**

- **Allegation C: Abuse of Authority – Sgt. Sean Lynch authorized the search of § 87(2)(b) in the Bronx.**
§ 87(2)(g) it is therefore recommended that **Allegation C be exonerated.**

- § 87(4-b) § 87(2)(g)

Results of Investigation

Civilian Statement

Victim: § 87(2)(b)
§ 87(2)(b) is a § 87(2)(b)-year-old African-American male, § 87(2)(b) with black hair and brown eyes. § 87(2)(b)

Consent to Search Form

§ 87(2)(b) signed a “consent to search” form at 1:10 p.m. on February 9, 2012, while officers were inside his apartment. The form contains a statement authorizing officers to search the premises and seize any items deemed appropriate, confirming that § 87(2)(b) was the legal owner of lawful custodian of the location, and confirming knowledge that consent could be revoked at any time (encl. 8a).

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on February 29, 2012 (encl. 7a-7f). On February 9, 2012, at approximately 1:00 p.m., § 87(2)(b) was in the bathroom of the apartment belonging to his girlfriend, § 87(2)(b) who was not present, at § 87(2)(b) in the Bronx. § 87(2)(b) heard a knock on the door and heard a voice say, “Police.” When § 87(2)(b) opened the door, he saw that four officers, identified by the investigation as Det. Rolando Carbonell, Det. Mark O’Connell, Det. Thomas McHale, and Sgt. Lynch, all of Narcotics Borough Bronx, were in the hallway. Det. Carbonell and Det. McHale pushed the door open and Det. Carbonell briefly patted the outside of § 87(2)(b) clothing while Det. O’Connell and Sgt. Lynch entered the apartment.

§ 87(2)(b) described Det. Carbonell as an African-American male officer in his mid-forties, standing approximately six feet, two inches tall, weighing approximately two-hundred-forty pounds, with a husky build. Det. Carbonell was wearing blue jeans, a black hooded sweatshirt, boots, and a baseball cap. § 87(2)(b) described Det. O’Connell as a Caucasian male officer in his late-forties, standing approximately six feet, two inches tall, weighing approximately two-hundred-fifty pounds, with a medium to overweight build, a mustache, and brown and grey hair. Det. O’Connell was wearing a sky-blue zip-up hooded sweatshirt, jeans, and boots. § 87(2)(b) described Det. McHale as a Caucasian male officer in his forties, standing approximately five feet, eleven inches tall, weighing approximately one-hundred-ninety pounds, with a slim build. Det. McHale was wearing black jeans, a “barn jacket” with plaid print, and a baseball cap. § 87(2)(b) described Sgt. Lynch as a Caucasian male officer in his mid-forties or early-fifties, standing approximately six feet tall, weighing approximately two-hundred-thirty pounds, with a husky build and brown hair. Sgt. Lynch was wearing blue jeans, a black jacket, and black boots. All of the officers were wearing bulletproof vests and had their shields displayed, although they were all turned away from § 87(2)(b) so that he could not read their shield numbers.

§ 87(2)(b) told the officers that they could not enter the apartment without a search warrant and Det. Carbonell told him that they did not need a warrant, since they knew there was marijuana in the apartment. § 87(2)(b) admitted to smoking marijuana on occasion but denied smoking recently or having marijuana inside the apartment. Det. O’Connell told § 87(2)(b) to sit on the couch and asked him, “Where’s the drugs?” Det. O’Connell informed him that the police had received numerous complaints that marijuana was being smoked inside the apartment. He specified that there were “a thousand complaints at the mayor’s office.” § 87(2)(b) told Det. O’Connell that he had just arrived at the apartment several minutes early. § 87(2)(b) stated that he had been inside the apartment for approximately thirty minutes prior to the officers’ arrival, during which time he had been watching television and writing e-mails, but not smoking marijuana. § 87(2)(b) also noted that, since the building had been renovated, the entire building always smelled like marijuana.

Det. O’Connell and Det. McHale searched inside the refrigerator and inside the kitchen cabinets, while Det. McHale went through a drawer in the kitchen. Det. McHale removed medication belonging to § 87(2)(b) from the drawer and briefly examined it before replacing it. Det. O’Connell moved into the living room and began searching through a pile of mail and paperwork on a table in the living room. Det. O’Connell commented on an eviction notice and § 87(2)(b) told him that it had been sent in error. Det. McHale entered the bedroom of the apartment and § 87(2)(b) heard the bedroom closet opening. Det. McHale and Sgt. Lynch then searched inside the bathroom. Det. Carbonell and Det. O’Connell looked inside several

shopping bags that were located near the front door of the apartment. When Det. O'Connell saw a laundry bag amongst the shopping bag, he said, "Y'all live like pigs."

When Det. Carbonell saw two marijuana "roaches," the butts of marijuana cigarettes, in an ashtray in the living room, he said, "We could take you in." Det. Carbonell then told § 87(2)(b) to sign a form, acknowledging that officers had not found any illegal items inside the apartment. Officers were inside the apartment for approximately fifteen minutes.

§ 87(2)(b) did not respond to repeated attempts by the investigation to contact him, in order to confirm his interest in mediation and to schedule a photo array viewing, to assist with officer identification. Five calls were placed to § 87(2)(b) home, mobile, and alternate telephone numbers between April 18, 2012 and June 4, 2012, and voice mail messages were left on each occasion. Please call letters were mailed to § 87(2)(b) on April 11, 2012 and April 18, 2012. A search of the Department of Correction inmate database confirmed that § 87(2)(b) was not incarcerated at the time that contact attempts were made. To date, no letters mailed to § 87(2)(b) have been returned to the CCRB by the US Postal Service.

NYPD Statements:

Subject Officer: SGT. SEAN LYNCH

Sgt. Lynch is a § 87(2)(b)-year-old Caucasian male officer, § 87(2)(b), with brown hair and blue eyes. On February 9, 2012, Sgt. Lynch worked from 09:25 a.m. to an unknown time, since he worked overtime, and was assigned to the 52nd Precinct module for Narcotics Borough Bronx with Det. Carbonell; both officers were dressed in plainclothes and were assigned to a 2009 or 2010 unmarked Dodge caravan, number § 87(2)(b) of which Sgt. Lynch was the driver. Sgt. Lynch recalled that his memo book did not contain any entries relevant to the incident, although he did not have it in his possession at the time of the interview (encl. 9a-9b).

CCRB Testimony

Sgt. Lynch was interviewed at the CCRB on July 19, 2012 (encl. 10a-10c). On February 9, 2012, at approximately 1:00 p.m., Sgt. Lynch and Det. Carbonell responded to § 87(2)(b) in the Bronx, since the apartment was the location of a "kite," where numerous complaints of marijuana smoking had been reported. The investigation into the location was conducted by Det. Carbonell. § 87(2)(f)

Approximately one week prior to the incident on February 9, 2012, Sgt. Lynch and Det. Carbonell had responded to the location in regards to the kite and had smelled the odor of marijuana immediately upon exiting the elevator of the building onto the § 87(2)(b) Floor. When the officers knocked on the door of § 87(2)(b) there was no response. The officers left the location when nobody answered the door.

On February 9, 2012, Sgt. Lynch again smelled the odor of marijuana immediately upon exiting the elevator on the § 87(2)(b) Floor with Det. Carbonell. An officer knocked on the door and an occupant of the apartment, identified by the investigation as § 87(2)(b) opened the door. § 87(2)(b) told the officers that he lived at the apartment and Sgt. Lynch asked him if he had been smoking marijuana. § 87(2)(b) told the officers that he occasionally smoked marijuana, and

stated that it was not a crime to smoke marijuana in one's own apartment. While speaking with the officers, § 87(2)(b) explicitly invited them inside, although Sgt. Lynch was unable to recall his exact words. Sgt. Lynch did not recall that any officer frisked or searched § 87(2)(b) during the incident.

Sgt. Lynch described the apartment as a "studio," consisting of one main room. Det. Carbonell asked § 87(2)(b) if the officers could search the apartment, although Sgt. Lynch was unable to recall his exact words, and § 87(2)(b) told the officers that they could search the apartment. Sgt. Lynch was unable to recall § 87(2)(b) exact words when he provided his consent for officers to search his apartment. Sgt. Lynch and Det. Carbonell looked around the apartment, without searching inside any closed compartments or areas, and Sgt. Lynch observed an ashtray filled with numerous "roaches" from marijuana cigars, on a windowsill. Sgt. Lynch did not recall that officers searched inside the refrigerator, inside any drawers, or inside any closets. Sgt. Lynch told § 87(2)(b) to "stop smoking" and § 87(2)(b) said that he would. § 87(2)(b) signed a "consent to search" form, in which he acknowledged residing at the apartment and providing officers with permission to search the apartment. Det. Carbonell explained the content of the form to § 87(2)(b) before he signed it. Sgt. Lynch did not recall that officers searched inside any shopping bags or laundry bags and did not recall that officers looked at any mail or medication inside the apartment. Sgt. Lynch denied that any officer used discourteous language during the incident, including saying that the occupants of the apartment lived "like pigs."

When presented with surveillance footage depicting the beginning of the incident, Sgt. Lynch identified himself as the officer wearing the hat and the vest, in the front of the group of officers exiting the elevator. Sgt. Lynch identified the officer wearing the grey hooded sweatshirt with an unidentified team logo as Det. McHale, identified the officer wearing the puffy vest, jeans, and winter hat as Det. Carbonell, and identified the remaining officer as Det. O'Connell. Sgt. Lynch did not recall what Det. McHale and Det. O'Connell did during the incident.

Sgt. Lynch noted that, on his way out of § 87(2)(b) immediately after the incident, he observed two males smoking marijuana in a vehicle parked in front of the building. Both individuals were arrested. The two arrests in front of the building were not related to the search of § 87(2)(b) apartment.

Witness Officer: DET. ROLANDO CARBONELL

Det. Carbonell is a § 87(2)(b)-year-old Hispanic male officer, § 87(2)(b) with black and grey hair and brown eyes. On February 9, 2012, Det. Carbonell worked from 9:27 a.m. to midnight on the following day as the arresting officer for a buy-and-bust operation conducted by Narcotics Borough Bronx, with Sgt. Lynch; both officers were dressed in plainclothes and were assigned to an unmarked vehicle, number § 87(2)(e).

Memo Book

Det. Carbonell made an omitted entry on the fly sheet of his memo book noting that, at 1:10 p.m. on February 9, 2012, he conducted an observation at § 87(2)(b) § 87(2)(b) in the Bronx (encl. 11a-11d).

Complaint Follow-Up Informational Report

The complaint follow-up informational report prepared by Det. Carbonell in connection with the incident contains a statement from Det. Carbonell, which was generally consistent with that he

provided to the CCRB. The report contains no information about how the officers entered the location (encl. 12a).

CCRB Testimony

Det. Carbonell was interviewed at the CCRB on July 19, 2012 (encl. 13a-13c). On February 9, 2012, at approximately 1:10 p.m., Det. Carbonell, Sgt. Lynch, Det. McHale, and Det. O’Connell traveled to § 87(2)(b) § 87(2)(b) in the Bronx to conduct an investigation into numerous complaints that had been called into 911 and 311, complaining of individuals smoking marijuana in the apartment. § 87(2)(f), § 87(2)(e)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

At the time of the incident, the officers exited the elevator and Det. Carbonell immediately smelled the odor of marijuana in the hallway of the § 87(2)(b) floor. Det. Carbonell knocked on the door and a male, identified by the investigation as § 87(2)(b) opened the door. Det. Carbonell identified the officers as police and explained that they were at the location in response to complaints of marijuana smoking. § 87(2)(b) verbally invited the officers inside the apartment and they entered. Det. Carbonell did not recall § 87(2)(b) exact words when he invited the officers inside his apartment; Det. Carbonell described § 87(2)(b) invitation as communicating, “Come on in,” but could not confirm that those were § 87(2)(b) exact words.

Det. Carbonell and § 87(2)(b) had a “friendly” conversation, in which § 87(2)(b) admitted to smoking marijuana in his apartment with his girlfriend, while maintaining that it was his right to smoke marijuana inside his apartment. Det. Carbonell told § 87(2)(b) that the smoke was bothering a neighbor and suggested that he place a towel under the door or open the window when he smoked. § 87(2)(b) told Det. Carbonell that he did not keep any drugs inside the apartment and said, “If you want, you can look.” Det. Carbonell asked § 87(2)(b) if he would sign a “consent to search” form and he agreed. Det. Carbonell did not recall that any officer, including himself, frisked or searched § 87(2)(b) during the incident.

Det. Carbonell and the other officers conducted a very brief search of the apartment, which is a small studio apartment. Det. Carbonell did not recall that any officer looked inside any drawers or cabinets, inside the refrigerator, inside any closets, or inside any shopping bags or laundry bags. Det. Carbonell denied that officers looked at any mail or medication inside the apartment. Det. Carbonell denied that any officer told § 87(2)(b) that the occupants of the apartment lived “like pigs.”

Det. Carbonell stated that the search consisted of officers looking around the apartment. Det. Carbonell noticed that there was an ashtray filled with the butts of numerous marijuana cigars and told § 87(2)(b) that he had to deal with the marijuana smoke. § 87(2)(b) signed the consent to search form and the officers left the location. § 87(2)(e), § 87(2)(f)

§ 87(2)(b)

§ 87(2)(b)

Det. Carbonell noted that, as the officers were entering the building prior to the incident, they observed two individuals smoking marijuana inside a vehicle parked in front of the building. The officers arrested the two individuals. The arrests were unrelated to the incident involving § 87(2)(b) [REDACTED]

NYPD Documents

- § 87(2)(f) [REDACTED]
[REDACTED]
[REDACTED]
- The Narcotics Borough Bronx roll call, movement sheets, and tactical plans from February 9, 2012 confirmed that Sgt. Lynch, Det. Carbonell, Det. McHale, and Det. O’Connell were on-duty at the time of the incident (encl. 15a-15b; 16a).

Other Evidence

Two surveillance videos from the eleventh floor of § 87(2)(b) [REDACTED] were obtained by the investigation. The first video depicts Sgt. Lynch, Det. Carbonell, Det. McHale, and Det. O’Connell exiting the elevator onto the § 87(2)(b) [REDACTED] floor and clearly depicts their faces and clothing. As discussed above, Sgt. Lynch identified all of the officers in the video during his CCRB interview.

The second surveillance video depicts officers entering § 87(2)(b) [REDACTED] apartment, from where the camera is located at the opposite end of the hallway. The officers can be seen entering the apartment, as their legs and feet are visible at the top of the frame. The entry is not depicted clearly enough to draw any conclusions regarding whether officers forcibly entered the apartment or whether § 87(2)(b) [REDACTED] provided his consent for them to enter. § 87(2)(b) [REDACTED] is not present in the video.

Status of Civil Proceedings

§ 87(2)(b) [REDACTED] has not filed a Notice of Claim with the City of New York as of October 12, 2012 with regard to the incident (encl. 23i).

Civilian Criminal History

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]

Civilian CCRB History

This is the first CCRB complaint filed by § 87(2)(b) [REDACTED] (encl. 4a).

Subject Officer CCRB History

- Sgt. Lynch has been a member of the service for sixteen years and there are no substantiated CCRB allegations against him (encl. 1a-1b).
- Det. Carbonell has been a member of the service for sixteen years and there are four substantiated CCRB allegations against him: in CCRB case number 200403560, one discourteous language allegation was substantiated against Det. Carbonell, for which he received instructions; in CCRB case number 200900281, one gun pointed allegation and one stop allegation were substantiated against Det. Carbonell, for which he received charges; and in CCRB case number 200912522, one threat of arrest allegation was substantiated against Det. Carbonell, for which he received no disciplinary action (encl. 2a-2c).

Conclusion

Identification of Subject Officer

Sgt. Lynch and Det. Carbonell confirmed that they, along with Det. McHale and Det. O’Connell, entered and searched § 87(2)(b) apartment at the time of the incident. Sgt. Lynch confirmed that he was the only supervising officer present during the entry and search of the apartment.

Investigative Findings and Recommendations

Allegation A: Abuse of Authority – Sgt. Sean Lynch authorized the entry of § 87(2)(b) in the Bronx.

Allegation B: Abuse of Authority – Det. Rolando Carbonell frisked § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) Rather, both Sgt. Lynch and Det. Carbonell were consistent in describing that § 87(2)(b) verbally invited the officers inside his apartment upon their arrival, although neither officer was able to recall his exact words. On the complaint follow-up informational report, Det. Carbonell did not mention that § 87(2)(b) provided his consent for officers to enter his apartment, although the description of the incident was brief. The surveillance video depicting officers entering § 87(2)(b) apartment does not depict the door, so it could not be determined whether officers pushed their way into § 87(2)(b) apartment.

§ 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegation A be unsubstantiated.**

§ 87(2)(g)

§ 87(2)(b) The surveillance video depicting the incident did not depict any interaction between § 87(2)(b) and the officers inside his apartment, while no independent witness testimony was obtained by the investigation in regards to the initial interaction inside the apartment. § 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegation B be unsubstantiated.**

Allegation C: Abuse of Authority – Sgt. Sean Lynch authorized the search of § 87(2)(b) in the Bronx.

§ 87(2)(g)

§ 87(2)(b) It was not disputed, however, that a search of the apartment occurred, and all of the parties interviewed in connection with the investigation confirmed that officers found remnants of marijuana cigars inside the apartment. It was also undisputed that § 87(2)(b) signed a “consent to search” form while officers were inside his apartment, a copy of which was provided to the investigation by Det. Carbonell. The form is clearly labeled “consent to search” on the top left corner and explicitly authorizes officers to conduct a complete search of § 87(2)(b) § 87(2)(b) in the Bronx. § 87(2)(b)

§ 87(2)(b) it is therefore recommended that **Allegation C be exonerated.**

§ 87(4-b) § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

Team: 1

Investigator:	_____	<u>Jonathan Hutchinson</u>	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date